

This Mobile Service Agreement ("Agreement") states the terms and conditions that govern the contractual agreement between Pierce Heavy Equipment LLC ("Contractor"), and Angelo Kirchon ("Client"), having its principal place of residence/home address at 12500 Nutty Brown Rd Austin Texas 78737, who agrees to be bound by this Agreement.

WHEREAS, Contractor offers Mobile Equipment Services (defined below), and Client desires to retain Contractor to provide such Mobile Equipment Services according to the terms and conditions in this Agreement.

NOW, THEREFORE, in consideration of the mutual covenants and promises made in this Agreement, Contractor and Client (individually, each a "Party" and collectively, the "Parties") covenant and agree as follows:

1. **Locations for the Services.** Contractor shall perform the Mobile Equipment Services at: 12500 Nutty Brown Rd Austin Texas 78737 (the "Property"). Client warrants and represents that Client either owns the Property or has legal access to the Property and the authority to engage Contractor for the Mobile Equipment Services.
2. **Term.** Contractor shall perform the Mobile Equipment Services only once until complete or until this Agreement is terminated. This is not an ongoing or continuing Agreement or project.
3. **Mobile Equipment Services.** Contractor agrees that it shall perform the Mobile Equipment Services described on Exhibit A attached hereto ("Mobile Equipment Services"). In the event Client changes the scope of the Mobile Equipment Services after execution of this Agreement, the cost of services and/or materials may increase.
4. **Compensation.** In consideration for the Mobile Equipment Services, Client agrees to and shall pay Contractor in accordance with the estimate in **Exhibit A**. Client is required to have a credit card on file with Contractor before Contractor begins for the payment of all Mobile Equipment Services.
5. **Client Responsibilities.** Client shall be responsible for ensuring that the Mobile Equipment Services are performed safely, for notifying Contractor of any hazards or dangers associated with the equipment or the Property and for ensuring Contractor has safe access to the equipment or the Property.
6. **Contractor Responsibilities.** In performing the Mobile Equipment Services, Contractor shall maintain general liability insurance and shall perform the Mobile Equipment Services and its obligations in this Agreement.
7. **Events of Default.** Client hereby acknowledges that it will be in default under this Agreement if Client is untimely in tendering payment owed to Contractor or fails to make any payment owed to Contractor when due or if Client fails to satisfy or is in breach of any other promise or covenant under this Agreement. Contractor hereby acknowledges that it will be in default under this Agreement if Contractor fails to perform the Mobile Equipment Services in this Agreement. Upon Client's Default, Contractor may commence an action against Client to collect all amounts owed in connection with this Agreement and/or charge and recover from Client all of such Contractor's out-of-pocket costs and expenses, including reasonable attorneys' fees and/or court costs, incurred by Contractor in connection with the enforcement of Contractor's rights under this Agreement. Contractor may place a lien on the Property at the sole discretion of Contractor pending Client's full payment of fees, late fees, and legal fees owed to Contractor.
8. **Promotion and Photographs.** Client hereby authorizes Contractor to take photographs of Client's equipment or Property for the use of promoting Contractor's business at Contractor's sole discretion and Client grants Contractor the sole ownership of and intellectual property rights to any such photographs.
9. **Indemnification.** To the fullest extent permitted by law, Client shall defend, indemnify, protect, and hold harmless Contractor and its representatives, agents and employees from and against all claims, lawsuits, damages, losses, liabilities, expenses, and costs of every kind pertaining to the Mobile Equipment Services or related in any way to this Agreement.
10. **Cancellation.** Contractor has the right to cancel this Agreement for any reason at any time. Client can cancel the Mobile Equipment Services at any time. If Client cancels before Contractor starts the Mobile Equipment Services, Client agrees to pay 4 hours at \$180 per hour plus any costs incurred by Contractor. If Client cancels after Contractor starts the Mobile Equipment Services, Client agrees to pay a minimum of 4 hours at \$180 per hour or the cost of the work performed by Contractor at the time Client cancels, whichever is more.
11. **Venue and Choice of Law.** This Agreement and the interpretation of its terms shall be governed by and construed in accordance with the laws of the State of Texas without regard to any conflict of law principles or rules. Any disputes or claims arising out of this Agreement must be brought in the federal and state courts of Williamson County, Texas, which is the exclusive venue and jurisdiction for any disputes or claims.
12. **Entire Agreement.** This Mobile Equipment Services Agreement represents the entire agreement between Contractor and Client and supersedes all other written or oral agreements, promises, understandings or statements. Client agrees and represents that Client is not relying on and disclaims any reliance on any oral or written representations, promises, understandings or statements other than those contained in this Agreement.
13. **No Modification Unless in Writing.** No modification of this Agreement shall be valid unless in writing and

- signed by both Parties.
14. **Severability.** If any portion of this Agreement is held to be invalid or unenforceable, the remaining portions of this Agreement will remain in full force and effect. Any invalid or unenforceable portions will be interpreted to affect the intent of the original portion. If such construction is not possible, the invalid or unenforceable portion will be severed from this Agreement, but the rest of the Agreement will remain in full force and effect.
15. **Assignment.** Client may not assign this Agreement or delegate any of Client's rights under this Agreement without Contractor's prior written consent, which will not be unreasonably withheld. Any assignment or transfer without Contractor's prior written consent is void. Contractor may assign this Agreement to another party without notice of the assignment to Client. Subject to the foregoing, this Agreement will be binding upon, and inure to the benefit of, the Parties and their respective successors and assigns.
16. **Force Majeure.** Contractor's obligations under this Agreement are excused by and subject to any delay for events beyond its control including, without limitation, war, catastrophe, pandemic, unavailability of parts or labor, weather and acts of God. If Contractor cannot meet its obligations due to any such event, Contractor shall not be liable to Client for any damages, expenses, delays or other losses incurred by reason of its inability to meet its obligations or estimated completion times and Client will not be entitled to any refunds, discounts, or rescission of this Agreement.
17. **Limitation of Liability:** CONTRACTOR'S LIABILITY SHALL NOT EXCEED THE TOTAL AMOUNT PAID BY CLIENT. CONTRACTOR IS NOT RESPONSIBLE FOR ANY DAMAGES TO CLIENT'S PROPERTY OR EQUIPMENT WHILE PERFORMING MOBILE EQUIPMENT SERVICES. CONTRACTOR SHALL NOT BE LIABLE FOR ANY INDIRECT, SPECIAL, INCIDENTAL, CONSEQUENTIAL, PUNITIVE, OR EXEMPLARY DAMAGES ARISING FROM OR RELATING TO THE MOBILE EQUIPMENT SERVICES, THIS AGREEMENT OR CONTRACTOR'S SERVICES, REGARDLESS OF THE TYPE OF CLAIM OR ANY NOTICE TO CONTRACTOR OF THE POSSIBILITY OF SUCH DAMAGES.
18. **Disclaimer of Warranties:** CONTRACTOR MAKES AND PROVIDES NO WARRANTIES, EXPRESS OR IMPLIED, AND DISCLAIMS ANY AND ALL EXPRESS OR IMPLIED WARRANTIES REGARDING THE MOBILE EQUIPMENT SERVICES, INCLUDING ANY WARRANTY OF MERCHANTABILITY, SUITABILITY, FITNESS FOR A PARTICULAR PURPOSE OR OTHERWISE. CONTRACTOR CANNOT AND DOES NOT GUARANTEE THAT ITS MOBILE EQUIPMENT SERVICES WILL FULLY REPAIR CLIENT'S EQUIPMENT OR MAKE SUCH EQUIPMENT OPERATIONAL. CLIENT AGREES AND ACKNOWLEDGES THAT CLIENT IS OBLIGATED TO PAY FOR ALL OF CONTRACTOR'S MOBILE EQUIPMENT SERVICES EVEN IF SUCH SERVICES DO NOT FULLY REPAIR CLIENT'S EQUIPMENT OR MAKE IT OPERATIONAL.

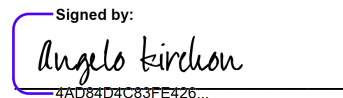
WAIVER OF TRIAL BY JURY: Contractor and Client waive their right to a jury trial in any suit or proceeding relating to or arising out of this Agreement or the Mobile Equipment Service.

IN WITNESS WHEREOF, each of the Parties has executed this Mobile Equipment Services Agreement, both Parties by its duly authorized officer, as of the day and year set forth below.



Pierce Heavy Equipment, LLC

Date: 9/16/2025

Signed by:

4AD84D4C83FE426...

Date: 9/16/2025

EXHIBITA- MOBILE EQUIPMENT SERVICES

- 1. Duration.** The Mobile Equipment Services are estimated to begin on 2025-09-19 and will continue until complete or this Agreement is terminated. Weather conditions may delay or change the start date or time to complete the project.
- 2. Service.** Pierce Heavy Equipment LLC will provide on-site equipment repair services. Our technicians will provide industry best practices to repair your equipment. We cannot guarantee that your equipment will be repaired, especially older or used equipment, and you will be billed for the travel time and labor time. We have a 1-hour minimum for Labor and Travel.
- 3. Estimate of Costs:**

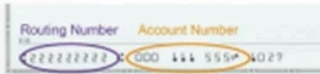
Travel Hourly Rate: \$ 195 x 2 hours.
 Labor Hourly Rate: \$ 195 x 3 hours.
 Parts Cost: \$ 0
 Total Cost: \$ 975

This is only an estimate and your final bill may be higher. The total amount in your final bill is due before Contractor leaves the Property where equipment is located and will be paid daily via your credit card or ACH on file.

CREDIT CARD PAYMENT AUTHORIZATION

Billing Information	
Address	12500 Nutty Brown Rd
City, State, Zip	Austin Texas 78737
Phone Number	6099232117
Email	akirchon@terrafirma.inc

Credit Card Information	
☐ Visa	☒ MasterCard
☐ Amex	☐ Discover
Cardholder Name	Angelo Kirchon
Account Number	5440150102609716
Exp. Date	07/28
Security Code	222

Bank Information	
☐ Checking	☐ Savings
Name on Account	
Bank Name	
Account Number	Routing Number
	

This authorization will remain in effect until I cancel it in writing at least 15 days prior to the next billing date. I acknowledge that the origination of ACH transactions to my account must comply with the provisions of U.S. law. I certify that I am an authorized user of this credit card/bank account and agree to the payment terms as long as the transactions correspond to the terms indicated in this authorization form.

Signed by: Angelo Kirchon DATE 9/16/2025
 CUSTOMER SIGNATURE 4AD84D4C83FE426...

PRINT NAME Angelo Kirchon